

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

PABLO A BERRIEL DUQUENZE,

Respondent

) Case Number: FCS-24-356942

) Hearing Date: July 16, 2026

) Hearing Time: 1:00 PM

) Department: 414

) Presiding: MUJDAH RAHIM

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 414 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Pablo A. Berriel Duquenze (Father) and Keilan Oliva Castellanos (Mother). They share one minor child, Shani, age 3.
- 2) On 9/24/2024, the Court entered a Judgment Regarding Parental Obligations (hereinafter “Judgment”) based on Father’s signed declaration of paternity and by his admission in the filed Answer. The Judgment ordered the parties to equally share uninsured medical expenses and ordered Father to pay Mother \$530 per month in child support. No custody or visitation orders have been entered in this case.
- 3) On 1/22/2026, Father filed a Request for Temporary (Emergency) Order seeking the return of the minor child to San Francisco and an award of sole legal and physical custody. The Court denied Father’s request for temporary emergency orders and set the matter for hearing on the regular law

1 and motion calendar. The hearing was later taken off calendar for failure to pay the filing fee after
2 Father's fee waiver request was denied.

3 4) On 4/24/2026, Father filed a Request for Order seeking joint legal and physical custody of Shani,
4 the child's return to San Francisco, and an order permitting out-of-state travel with the child
5 unless mutually agreed in writing between the parents.

6 5) Father asserts that Mother took Shani to Miami in October 2025, initially representing the move
7 as temporary, but had since relocated with the child to Texas and then Nebraska. He alleges that
8 Mother has provided inconsistent and contradictory information regarding Shani's whereabouts,
9 frequently changed the child's residence and caregivers, and that he is currently unaware of the
10 child's location. Mother admitted to residing in Nebraska on December 30, 2205. He also alleges
11 that Mother has sent him hostile text messages and believes her actions are not in Shani's best
12 interests.

13 6) Father states that he did not previously seek custody orders because he had consistent visits with
14 Shani and believed seeking custody could jeopardize the housing and educational assistance
15 Mother and the child were receiving. Father attached to his declaration text messages in Spanish
16 with English translations, as well as photographs of himself with the child.

17 7) On 5/19/2026, Mother filed a Responsive Declaration opposing Father's requests, seeking sole
18 legal and physical custody of Shani, and proposing a parenting schedule. She alleged that Father
19 was abusive during her pregnancy, causing her to stay in shelters at times. Mother stated that
20 following their separation, Father exercised parenting time approximately twice per week while
21 she remained Shani's primary caregiver and that Father was not involved in decisions regarding
22 the child's education or healthcare. Mother further asserts that Father initially agreed to her
23 relocation to Miami or Texas and objected only after learning she had moved to Nebraska with
24 her partner. In support of her claims, Mother attached text messages in Spanish with English
25 translations that she contents demonstrate Father's prior agreement to move.

26 8) Mother states that she and Shani have greater emotional, financial, and practical support in
27 Nebraska, where they reside with her partner, Yoangeles, and his 10-year-old son. She contrasts
28 this with their prior circumstances in San Francisco, where they lived in government housing in
29 an unsafe neighborhood and she relied on CalWorks while working odd jobs. Mother asserts that

Shani has adjusted well to daycare, developed close relationships with her partner's nearby family, and become integrated into the community. She contends that remaining in Nebraska is in Shani's best interests because it provides greater stability, continuity, and safety. Mother further states that she has facilitated Father's involvement by providing him access to the video stream from Shani's daycare.

9) Regarding parenting time, Mother proposed regular and holiday visitation schedules and requested that the parties continue their existing telephone and video contact schedule, consisting of weekday calls from 7:00 p.m. to 7:30 p.m. and weekend morning calls. Mother also agrees with Father's request that neither party relocate Shani's residence without the other parent's written consent or a court order.

10) As to legal custody, Mother asserts that Father did not express an interest in participating in Shani's medical or educational decision-making until after Mother and the child relocated. She contends that awarding Father joint legal custody would be disruptive and impractical because he has not historically participated in those decisions and resides in another state.

11) On 6/1/2026, the parties appeared for a readiness hearing and obtained mediation and hearing dates.

12) On 6/30/2026, the parties appeared for mediation and did not reach an agreement.

13) On 7/6/2026, Father filed a Supplemental Declaration disputing Mother's allegation of abuse and asserting that Mother has a documented pattern of emotional abuse, demeaning conduct, and manipulation directed at him. Father also stated that any prior lack of involvement in medical and educational decisions resulted from Mother withholding information and making unilateral decisions.

14) Father also asserted that Mother and Shani are no longer residing with her partner at the listed address. He described instances where he provided care and support to Mother and Shani and stated that he has a strong support network of family, friends, and religious community members in the San Francisco Bay Area who have maintained consistent contact with Shani since birth. Father attached multiple photographs documenting his relationship with Shani and his extended family.

B. FINDINGS AND ORDERS

1) Appearances are required.

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